

25SMCV00048 25SMCV00048

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Case Number: 25SMCV00048 Hearing Date: July 14, 2026 Dept: M

CASE NAME: Robertson's Ready Mix Ltd., v. Sahara Construction Co., Inc., et al.

CASE NO.: 25SMCV00048

MOTION: Motion to Strike

HEARING DATE: 7/9/2026

LEGAL STANDARD

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause

of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Plaintiff Robertson's Ready Mix Ltd. moves to strike Defendant Sahara Construction Co., Inc.'s answer to the Complaint.

A corporation cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. (CLD Construction Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.) It must be represented by licensed counsel in proceedings before courts of record. (Id.)

While Sahara was represented when it filed its answer on July 14, 2025, on March 26, 2026, the Court granted Sahara's counsel's motion to be relieved. Sahara must retain new counsel in order to proceed with its defense in this action. Sahara has not opposed this motion, or retained new counsel. Thus, the motion to strike may be granted. In the abundance of caution, and in favor of disposition on the merits, the Court will grant Sahara an opportunity to retain counsel. The instant motion is continued to August 7, 2026, at 9:00 a.m. The Court will also set an OSC Re: Retention of Counsel for that same date and time. Sahara must file a substitution of counsel by that OSC hearing, or the answer may be stricken.